

THE SUPREME COURT OF PAKISTAN
(Appellate Jurisdiction)

PRESENT:

MR. JUSTICE MUHAMMAD HASHIM KHAN KAKAR
MR. JUSTICE SALAHUDDIN PANHWAR
MR. JUSTICE ISHTIAQ IBRAHIM

CRIMINAL PETITION NO.1339 OF 2022

(Against the judgment dated 12.09.2022, passed by
the High Court of Balochistan, Quetta in Criminal
Appeal No.385 of 2021)

Sardar Muhammad

...Petitioner(s)

VERSUS

The State

...Respondent(s)

For the Petitioner(s): Mr. Muhammad Shabbir Rajput, ASC
along with Asif Ali Talpur, ASC

For the State: Syed Pervez Bukhari, ASC, State counsel

Date of hearing: 23.02.2026

JUDGMENT

ISHTIAQ IBRAHIM, J.- Pursuant to an intel in respect of trafficking of narcotics (charas), Abdul Rehman, SHO (PW-1), along with other police officials, allegedly laid a barricade at *Chapli near Khalizai Nika graveyard, Loralai* on 19.02.2021 and at about 09:15 a.m., intercepted a person riding a motorcycle carrying a white sack, who on query, disclosed his name as Sardar Muhammad (the petitioner). Upon search of the sack, 15 kilograms of charas were purportedly recovered. Murasila Exh.P/1-A was prepared and sent through driver Noorullah to Police Station Loralai, whereupon First Information Report (FIR) No.28/2021 dated 19.02.2021 under section 9(c) of the Control of Narcotic Substances Act, 1997 (“Act of 1997”) was registered against the petitioner. The recovered narcotics were sealed in parcel No.1 and handed over to Muhammad

Tahir, SI (PW-4), the Investigating Officer, who recorded statements of the witnesses under section 161, Cr.P.C., and sent parcel No.1 (containing entire case property) to the Federal Narcotics Testing Laboratory (FNTL), Balochistan, Quetta. Upon completion of investigation, report under section 173, Cr.P.C., was submitted before the Special Judge, CNS, Loralai. The learned Trial Court, vide judgment dated 25.08.2021, convicted the petitioner under section 9(c) of the CNS Act and sentenced him to imprisonment for life with fine. The High Court of Balochistan, Quetta, through judgment dated 12.09.2022, maintained the conviction and sentence. Through instant petition, the petitioner has questioned his conviction and sentence recorded by the two courts below.

2. We have heard learned counsel for the parties and perused the record with their assistance.

3. The case of the prosecution hinges primarily upon the testimonies of Abdul Rehman, SHO (PW-1), the seizing officer, and Baitullah, ASI (PW-2), marginal witness of the recovery memo Exh.P.2-A. A careful scrutiny of their depositions, particularly their cross-examinations, reveals material contradictions on material particulars. PW-1 stated that they were present on the bypass road on patrolling duty when received spy information at 8:45 a.m., whereas PW-2 deposed that they were patrolling in *Kabari Bazaar* when received spy information which is at a distance of 1 ½ Kilometers from bypass road. PW-2 further stated that they left *Kabari Bazaar* at 09:30 a.m. and reached the spot within ten minutes, which materially conflicts with the timeline furnished by the seizing Officer (PW.1). Both the above named PWs are also not consistent on the times of sealing of the recovered substance into parcel, preparation of the memo, and departure from the spot and arrival at the police station. The seizing Officer stated that another case was also registered by him on the same day against one Muhammad Hashim, whereas PW-2 expressed complete ignorance about registration of case against any such person. These contradictions in the statements of the star witnesses of the

prosecution are neither minor nor inconsequential; rather, they strike at the root of the prosecution story and impair the credibility of the witnesses. It is further noteworthy that no site plan of the place of occurrence was prepared or produced. Likewise, the prosecution failed to place on record the relevant roznamcha/daily diary showing departure from and arrival at the police station of the seizing Officer.

4. The prosecution has also failed to establish an unbroken chain of safe custody of the case property from the spot till its delivery in FNTL Balochistan. According to seizing Officer the sealed parcel No.1 containing case property was handed over to the Baitullah ASI/Investigating Officer (PW.2) on 19.02.2021, who in turn delivered it to the Moharrir Daud Khan ASI (PW-3) for deposit in the Malkhana. PW-3 stated that the parcel remained in his custody until 19/20.02.2021 but did not clarify the exact date or time when it was returned to the Investigating Officer for onward transmission. The Investigating Officer deposed that he took the parcel to the FNTL on 21.02.2021 and handed it over on 22.02.2021. The FNTL report confirms receipt of the case property on 22.02.2021. However, the prosecution has offered no plausible explanation as to where and in whose custody the case property remained from 19/20.02.2021 till 22.02.2021. This break in the chain of custody creates a serious dent in the prosecution case. It is by now a settled principle of law that in cases involving narcotics, the prosecution must establish safe custody and safe transmission of the recovered substance from the place of recovery till its receipt in the laboratory. Any break in the chain of custody is fatal to the prosecution case. This Court in *Qaiser Khan v. The State through Advocate-General Khyber Pakhtunkhwa, Peshawar* (2021 SCMR 363), *Mst. Razia Sultana v. The State and another* (2019 SCMR 1300), *The State through Regional Director ANF v. Imam Bakhsh and others* (2018 SCMR 2039), *Ikram Ullah and others v. The State* (2015 SCMR 1002), and *Amjad Ali v. The State* (2012 SCMR 577), has consistently held that failure to prove safe custody and safe transmission of the contraband entitles the accused to the benefit

of doubt. It is a cardinal principle of criminal jurisprudence that the prosecution must prove its case beyond reasonable doubt and that any single circumstance creating reasonable doubt in the mind of a prudent person is sufficient to entitle the accused to acquittal, not as a matter of grace but as of right. It is equally well settled that where the statute provides for severe and deterrent punishment, the standard of proof required must be correspondingly strict and free from infirmity. In the present case, the cumulative effect of the material contradictions in the statements of the prosecution witnesses, non-production of the site plan and roznamcha entries, and the unexplained gap in the chain of custody of the case property renders the prosecution case doubtful. The prosecution has failed to establish its case beyond reasonable doubt.

5. For the foregoing reasons, this petition is converted into an appeal and allowed. The conviction and sentence awarded to the appellant-convict by the Courts below are set aside, and he is acquitted of the charge by extending the benefit of doubt. He shall be released forthwith, if not required to be detained in any other case.

Judge

Judge

Judge

Islamabad the

23rd February, 2026

Not Approved for Reporting

M.Siraj Afridi PS